



Bill Number: H.B. 2991

Bolick Floor Amendment

**Reference to: REGULATORY AFFAIRS AND GOVERNMENT
EFFICIENCY S/E Committee Amendment**

Amendment drafted by: Leg. Council

FLOOR AMENDMENT EXPLANATION

Duties of Covered Companies

1. Specifies that a covered company must provide:
 - a) an accessible interface for an account holder or a user to provide a birth date or age in order to provide an age signal to developers at the time of the account set up or at any time thereafter; and
 - b) the option to opt in to share the account holder's or user's age bracket data with developers for the purposes of providing age-appropriate content.
2. Specifies that a covered company must facilitate parental or guardian consent for access to an application that is preloaded onto a device for the first time in response to a request from a developer.
3. Removes the requirement for a cover company to connect the application developer with the parent or guardian of a child to provide notification of prescribed parental control features.
4. Requires a covered company to make controls available that enable account holders to:
 - a) restrict which applications can be downloaded by a user based on the applications' age rating within the covered company's application store; and
 - b) limit the amount of time a user can spend on downloaded applications.
5. Requires a covered company to send only the minimum amount of information that is necessary to comply with statute.
6. Prohibits a covered company from sharing the age signal or parent or guardian consent signal with a third party for any purpose that is not required by law.
7. States that a covered company is not required to share age signals with a third party, other than with a developer, through an application that is distributed on the covered company's application store.

Duties of Developers and Social Media Platforms

8. Removes the requirement for a developer, on an account creation or first access, to request from a covered company a parental consent signal.

9. Specifies that a developer must use an age signal from a covered company if the data is available for prescribed age restriction requirements.
10. Removes the requirement for a social media platform to implement separate minor default settings.
11. Recategorizes the prescribed minor default settings as required parental control features.
12. Removes as required parental control features:
 - a) the ability to disable the display of personalized recommendation systems for a child; and
 - b) the prohibiting of a minor user from sharing the minor user's real-time precise geolocation with any other user.
13. Specifies that, if a developer has clear and convincing evidence that a user's age is different from the age signal that the developer received from the covered company, the developer may use its internal data.
14. Removes the requirement for a developer to transmit the conflicting internal age signal back to the covered company for age reverification.

Miscellaneous

15. Removes the requirement for a commercial entity that knowingly and internationally publishes or distributes a substantial portion of material that is harmful to minors on an application to provide prescribed age verification for any person attempting to access the material.
16. Removes the authorization for a minor or minor's parent to bring a civil action against a covered company, developer or commercial entity for a violation of the technology protection for minors requirements.
17. Adds that a covered company complies with the technology protection for minor requirements in a nondiscriminatory manner if it does not use data that is not otherwise publicly available for use by third parties.
18. Renames the Technology Content Protection for Minors Fund as the Technology Protection for Minors Fund.
19. Modifies the definition of *covered company* and *social media platform*.
20. Makes technical and conforming changes.

BOLICK FLOOR AMENDMENT
SENATE AMENDMENTS TO H.B. 2991

(Reference to REGULATORY AFFAIRS AND GOVERNMENT EFFICIENCY S/E Committee amendment)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[~~GREEN STRIKEOUT IN BRACKETS~~] indicates new text removed from statute or previously enacted session law.

[~~Green strikeout in brackets~~] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<~~Green strikeout in carets~~>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Strike everything after the enacting clause and insert:

3 "Section 1. Title 41, chapter 1, article 5, Arizona Revised
4 Statutes, is amended by adding section 41-191.14, to read:

5 41-191.14. Technology protection for minors grant fund;
6 exemption; grants; quarterly reports

7 A. THE TECHNOLOGY ~~[CONTENT]~~ PROTECTION FOR MINORS GRANT FUND IS
8 ESTABLISHED CONSISTING OF MONIES FROM CIVIL PENALTIES, ATTORNEY FEES AND
9 LITIGATION COSTS THAT ARE RECOVERED BY THE ATTORNEY GENERAL PURSUANT TO
10 SECTION ~~[44-8047]~~ [44-8045]. THE ATTORNEY GENERAL SHALL ADMINISTER THE
11 FUND. MONIES IN THE FUND ARE CONTINUOUSLY APPROPRIATED AND ARE EXEMPT
12 FROM THE PROVISIONS OF SECTION 35-190 RELATING TO LAPSING OF
13 APPROPRIATIONS.

14 B. MONIES IN THE FUND MAY NOT BE TRANSFERRED TO OR OTHERWISE MADE
15 AVAILABLE TO ANY OTHER STATE FUND OR ACCOUNT AND MAY NOT BE USED FOR
16 OPERATING EXPENSES OF THE ATTORNEY GENERAL'S OFFICE OR STAFF SALARIES.

17 C. THE ATTORNEY GENERAL SHALL USE THE MONIES IN THE FUND SOLELY TO
18 AWARD GRANTS TO NONPROFIT ORGANIZATIONS FOR THE FOLLOWING:

19 1. OUTREACH PROGRAMS THAT PROVIDE EDUCATION TO PARENTS, GUARDIANS
20 AND MINORS ABOUT ONLINE SAFETY, DIGITAL LITERACY AND THE EFFECTS OF SOCIAL
21 MEDIA ON THE MENTAL HEALTH OF MINORS.

22 2. PROGRAMS THAT PROVIDE RESOURCES OR SERVICES TO MINORS WHO HAVE
23 EXPERIENCED HARM AS A RESULT OF VIOLATIONS OF [TITLE 44.] CHAPTER 42 ~~[OF~~
24 ~~THIS TITLE]~~.

25 3. RESEARCH ON THE EFFECTS OF SOCIAL MEDIA ON THE MENTAL AND
26 PHYSICAL HEALTH OF MINORS.

1 4. LAW ENFORCEMENT PROGRAMS THAT INVESTIGATE VIOLATIONS OF [TITLE
2 44.] CHAPTER 42 ~~[OF THIS TITLE]~~ AND TECHNOLOGY-FACILITATED HARM TO MINORS.

3 5. PROGRAMS THAT PROVIDE MENTAL HEALTH COUNSELING, TREATMENT OR
4 SUPPORT SERVICES TO MINORS WHO HAVE EXPERIENCED PSYCHOLOGICAL OR EMOTIONAL
5 HARM AS A RESULT OF USING SOCIAL MEDIA AND VIOLATIONS OF [TITLE 44.]
6 CHAPTER 42 ~~[OF THIS TITLE]~~.

7 6. PROGRAMS THAT PROVIDE PREVENTION EDUCATION, VICTIM SERVICES OR
8 LAW ENFORCEMENT SUPPORT RELATED TO ~~[THE]~~ HUMAN TRAFFICKING OR SEXUAL
9 EXPLOITATION OF MINORS FACILITATED THROUGH SOCIAL MEDIA PLATFORMS.

10 D. THE ATTORNEY GENERAL SHALL ESTABLISH GRANT ELIGIBILITY CRITERIA,
11 APPLICATION PROCEDURES AND REPORTING REQUIREMENTS FOR RECIPIENTS OF GRANTS
12 AWARDED PURSUANT TO THIS SECTION SUBJECT TO JOINT LEGISLATIVE BUDGET
13 COMMITTEE APPROVAL.

14 E. ON OR BEFORE JANUARY 15, APRIL 15, JULY 15 AND OCTOBER 15 OF
15 EACH YEAR, THE ATTORNEY GENERAL SHALL COMPILE A REPORT THAT INCLUDES AN
16 ACCOUNTING OF ALL THE MONIES SPENT FROM THE FUND, INCLUDING:

17 1. RECEIPTS.

18 2. DISBURSEMENTS.

19 3. THE CURRENT BALANCE OF THE FUND.

20 4. THE NAME OF EACH GRANT RECIPIENT.

21 5. THE AMOUNT AWARDED TO EACH GRANT RECIPIENT.

22 6. THE PURPOSE FOR EACH GRANT AWARDED.

23 F. THE ATTORNEY GENERAL SHALL SUBMIT THE ~~[REPORT]~~ [REPORTS COMPILED
24 PURSUANT TO SUBSECTION E OF THIS SECTION] TO ALL OF THE FOLLOWING:

25 1. THE GOVERNOR.

26 2. THE PRESIDENT OF THE SENATE.

27 3. THE SPEAKER OF THE HOUSE OF REPRESENTATIVES.

28 4. THE MINORITY LEADER OF THE SENATE.

29 5. THE MINORITY LEADER OF THE HOUSE OF REPRESENTATIVES.

30 6. THE DIRECTOR OF THE JOINT LEGISLATIVE BUDGET COMMITTEE.

31 7. THE SECRETARY OF STATE.

32 Sec. 2. Title 44, Arizona Revised Statutes, is amended by adding
33 chapter 42, to read:

34 CHAPTER 42

35 TECHNOLOGY CONTENT

36 ARTICLE 1. SOCIAL MEDIA

37 44-8041. Definitions

38 IN THIS CHAPTER, UNLESS THE CONTEXT OTHERWISE REQUIRES:

39 ~~[1. "ANONYMOUS AGE VERIFICATION" MEANS A COMMERCIALY REASONABLE~~
40 ~~METHOD THAT IS USED BY A GOVERNMENT AGENCY OR A BUSINESS FOR THE PURPOSE~~
41 ~~OF AGE VERIFICATION THAT IS CONDUCTED BY A NONGOVERNMENTAL, INDEPENDENT~~
42 ~~THIRD PARTY THAT IS ORGANIZED UNDER THE LAWS OF ANY STATE OF THE UNITED~~
43 ~~STATES THAT BOTH:~~

44 ~~(a) HAS ITS PRINCIPAL PLACE OF BUSINESS IN ANY STATE OF THE UNITED~~
45 ~~STATES;~~

46 ~~(b) IS NOT OWNED OR CONTROLLED BY A COMPANY THAT IS FORMED IN A~~
47 ~~FOREIGN COUNTRY, A GOVERNMENT OF A FOREIGN COUNTRY OR ANY OTHER ENTITY~~
48 ~~FORMED IN A FOREIGN COUNTRY.~~

1 ~~2.]~~ [1.] "APPLICATION" MEANS A SOFTWARE APPLICATION OR ELECTRONIC
2 SERVICE THAT A USER MAY RUN OR DIRECT ON A COMPUTER, A MOBILE DEVICE OR
3 ANY OTHER GENERAL PURPOSE COMPUTING DEVICE.

4 ~~3.]~~ [2.] "APPLICATION STORE" MEANS A PUBLICLY AVAILABLE WEBSITE,
5 SOFTWARE APPLICATION, ELECTRONIC SERVICE OR PLATFORM THAT DISTRIBUTES AND
6 FACILITATES THE DOWNLOAD OF APPLICATIONS FROM THIRD-PARTY DEVELOPERS TO
7 USERS OF A COMPUTER, A MOBILE DEVICE OR ANY OTHER GENERAL PURPOSE
8 COMPUTING DEVICE.

9 ~~4.]~~ [3.] "CHILD" MEANS AN INDIVIDUAL WHO IS ~~[LESS THAN]~~ [UNDER]
10 SIXTEEN YEARS OF AGE.

11 ~~5.]~~ [4.] "COMMERCIAL ENTITY" INCLUDES A CORPORATION, A LIMITED
12 LIABILITY COMPANY, A PARTNERSHIP, A LIMITED PARTNERSHIP, A SOLE
13 PROPRIETORSHIP AND ANY OTHER LEGALLY RECOGNIZED ENTITY.

14 ~~6.]~~ [5.] "COVERED COMPANY":
15 (a)] MEANS A PERSON THAT OWNS, CONTROLS OR OPERATES AN APPLICATION
16 STORE OR OPERATING SYSTEM THAT SERVICES CUSTOMERS IN THIS STATE.
17 [(b)] DOES NOT INCLUDE A TELECOMMUNICATIONS CARRIER OR BROADBAND
18 PROVIDER THAT SOLELY PROVIDES INTERNET ACCESS OR TRANSMISSION SERVICES
19 WITHOUT CONTROL OVER APPLICATION DISTRIBUTION OR OPERATING SYSTEM
20 FUNCTIONALITY.

21 ~~7.]~~ [6.] "DAILY ACTIVE USERS" MEANS THE NUMBER OF UNIQUE USERS IN
22 THE UNITED STATES WHO USED THE SOCIAL MEDIA PLATFORM AT LEAST EIGHTY
23 PERCENT OF THE DAYS DURING EITHER:
24 (a) THE PREVIOUS TWELVE-MONTH PERIOD.
25 (b) THE PREVIOUS ONE-MONTH PERIOD IF THE SOCIAL MEDIA PLATFORM DID
26 NOT EXIST DURING THE PREVIOUS TWELVE-MONTH PERIOD.

27 ~~8.]~~ [7.] "DEVELOPER" MEANS A PERSON THAT CREATES, OWNS OR
28 CONTROLS A PUBLIC-FACING WEBSITE, ONLINE SERVICE, ONLINE APPLICATION OR
29 MOBILE APPLICATION.

30 ~~9.]~~ [8.] "DISTRIBUTE" MEANS TO ISSUE, SELL, GIVE, PROVIDE,
31 DELIVER, TRANSFER, TRANSMIT, CIRCULATE OR DISSEMINATE BY ANY MEANS.

32 ~~[10. "HARMFUL TO MINORS" HAS THE SAME MEANING PRESCRIBED IN SECTION~~
33 ~~13-3501.]~~

34 ~~11.]~~ [9.] "INFINITE SCROLLING" MEANS CONTENT THAT IS CONTINUOUSLY
35 LOADING OR CONTENT THAT LOADS AS THE USER SCROLLS DOWN THE WEBPAGE WITHOUT
36 THE NEED TO OPEN A SEPARATE WEBPAGE.

37 ~~12.]~~ [10.] "OPERATING SYSTEM" MEANS AN ENTITY THAT DEVELOPS,
38 MAINTAINS OR DISTRIBUTES AN OPERATING SYSTEM ON A COMPUTER, A MOBILE
39 DEVICE OR ANY OTHER GENERAL PURPOSE COMPUTING DEVICE.

40 ~~13.]~~ [11.] "PERSONALIZED RECOMMENDATION SYSTEM":
41 (a) MEANS A FULLY OR PARTIALLY AUTOMATED SYSTEM USED TO SUGGEST,
42 PROMOTE OR RANK A FEED OF [★] USER-GENERATED CONTENT BASED ON THE USER'S
43 ACTIVITY ON THE COVERED [SOCIAL MEDIA] PLATFORM.
44 (b) DOES NOT INCLUDE A RECOMMENDATION SYSTEM THAT SUGGESTS,
45 PROMOTES OR RANKS CONTENT BASED SOLELY ON THE USER'S LANGUAGE, CITY OR
46 TOWN OR AGE.

1 ~~[14. "PRECISE GEOLOCATION":~~

2 ~~(a) MEANS INFORMATION DERIVED FROM TECHNOLOGY, INCLUDING GLOBAL~~
3 ~~POSITIONING SYSTEM LEVEL LATITUDE AND LONGITUDE COORDINATES OR OTHER~~
4 ~~MECHANISMS, THAT DIRECTLY IDENTIFIES THE SPECIFIC LOCATION OF A NATURAL~~
5 ~~PERSON WITH PRECISION AND ACCURACY WITHIN A RADIUS OF ONE THOUSAND SEVEN~~
6 ~~HUNDRED FIFTY FEET.~~

7 ~~(b) DOES NOT INCLUDE THE CONTENT OF COMMUNICATIONS OR ANY DATA~~
8 ~~GENERATED BY OR CONNECTED TO ADVANCED UTILITY METERING INFRASTRUCTURE~~
9 ~~SYSTEMS OR EQUIPMENT FOR USE BY A UTILITY.~~

10 ~~15. "PUBLISH" MEANS TO COMMUNICATE OR MAKE INFORMATION AVAILABLE TO~~
11 ~~ANOTHER PERSON ON A PUBLICLY AVAILABLE WEBSITE OR APPLICATION.~~

12 ~~16.] [12.] "SOCIAL MEDIA PLATFORM":~~

13 ~~(a) MEANS AN ONLINE FORUM, WEBSITE OR APPLICATION THAT SATISFIES~~
14 ~~[EACH][ALL] OF THE FOLLOWING CRITERIA:~~

15 ~~(i) ALLOWS A USER TO UPLOAD CONTENT OR VIEW THE CONTENT OR ACTIVITY~~
16 ~~OF OTHER USERS.~~

17 ~~[(ii) HAS AT LEAST TEN PERCENT OF DAILY ACTIVE USERS WHO ARE UNDER~~
18 ~~SIXTEEN YEARS OF AGE AND WHO ON AVERAGE SPENT AT LEAST TWO HOURS PER DAY~~
19 ~~ON THE ONLINE FORUM, WEBSITE OR APPLICATION DURING THE PREVIOUS TWELVE~~
20 ~~MONTHS OR IF THE ONLINE FORUM, WEBSITE OR APPLICATION DID NOT EXIST DURING~~
21 ~~THE PREVIOUS TWELVE MONTHS, DURING THE PREVIOUS ONE-MONTH PERIOD.]~~

22 ~~[(iii) [EMPLOYS][USES] ALGORITHMS THAT ANALYZE USER DATA OR~~
23 ~~INFORMATION ON USERS TO SELECT CONTENT FOR USERS.~~

24 ~~[(iv)] [(iv)] HAS INFINITE SCROLLING OR SEAMLESS CONTENT OR THE~~
25 ~~USE OF WEBPAGES WITH NO VISIBLE OR APPARENT END OR PAGE BREAKS, HAS PUSH~~
26 ~~NOTIFICATIONS OR ALERTS SENT BY AN ONLINE FORUM, WEBSITE OR APPLICATION TO~~
27 ~~INFORM A USER ABOUT SPECIFIC ACTIVITIES OR EVENTS RELATED TO THE USER'S~~
28 ~~ACCOUNT, DISPLAYS PERSONAL INTERACTIVE METRICS THAT INDICATE THE NUMBER OF~~
29 ~~TIMES OTHER USERS HAVE CLICKED A BUTTON TO INDICATE THE USERS' REACTIONS~~
30 ~~TO CONTENT OR HAVE SHARED OR REPOSTED THE CONTENT, HAS AUTO-PLAY VIDEO OR~~
31 ~~VIDEO THAT BEGINS TO PLAY WITHOUT THE USER FIRST CLICKING ON THE VIDEO OR~~
32 ~~ON A PLAY BUTTON FOR THAT VIDEO OR HAS [LIVE-STREAMING][LIVESTREAMING] OR~~
33 ~~[HAS] A FUNCTION THAT ALLOWS A USER OR ADVERTISER TO BROADCAST LIVE VIDEO~~
34 ~~CONTENT IN [REAL-TIME][REAL TIME].~~

35 ~~(b) DOES NOT INCLUDE AN ONLINE SERVICE, WEBSITE OR APPLICATION~~
36 ~~[WHERE][OF WHICH] THE EXCLUSIVE FUNCTION IS EMAIL OR DIRECT MESSAGING~~
37 ~~CONSISTING OF [TEXT][TEXTS], PHOTOGRAPHS, PICTURES, IMAGES OR VIDEOS THAT~~
38 ~~ARE SHARED ONLY BETWEEN THE SENDER AND THE RECIPIENTS AND THAT ARE NOT~~
39 ~~DISPLAYED OR POSTED PUBLICLY OR TO OTHER USERS THAT ARE NOT SPECIFICALLY~~
40 ~~IDENTIFIED BY THE SENDER AS THE RECIPIENTS.~~

41 ~~[17. "STANDARD AGE VERIFICATION" MEANS ANY COMMERCIALLY REASONABLE~~
42 ~~METHOD OF AGE VERIFICATION THAT IS APPROVED BY THE COMMERCIAL ENTITY.~~

43 ~~18. "SUBSTANTIAL PORTION" MEANS MORE THAN THIRTY-THREE AND ONE~~
44 ~~THIRD PERCENT OF THE TOTAL MATERIAL ON A WEBSITE OR APPLICATION.]~~

1 44-8042. Covered companies; duties; prohibition

2 [A.] A COVERED COMPANY SHALL:

3 ~~[1. TAKE COMMERCIALLY REASONABLE STEPS TO DETERMINE OR ESTIMATE THE~~
4 ~~AGE FOR:~~

5 ~~(a) NEW USERS, AT ACCOUNT CREATION;~~

6 ~~(b) EXISTING USERS, WITHIN SIX MONTHS AFTER THE EFFECTIVE DATE OF~~
7 ~~THIS SECTION.]~~

8 [1. PROVIDE AN ACCESSIBLE INTERFACE FOR AN ACCOUNT HOLDER OR A USER
9 TO SET UP AN ACCOUNT THAT ALLOWS THE ACCOUNT HOLDER OR THE USER TO PROVIDE
10 A BIRTH DATE OR AGE IN ORDER TO PROVIDE THE ACCOUNT HOLDER'S OR THE USER'S
11 AGE SIGNAL TO DEVELOPERS AT THE TIME OF THE ACCOUNT SET UP OR AT ANY TIME
12 THEREAFTER AND TO PROVIDE THE ACCOUNT HOLDER OR THE USER WITH THE OPTION
13 TO OPT IN TO SHARE THE ACCOUNT HOLDER'S OR THE USER'S AGE BRACKET DATA
14 WITH THE DEVELOPER FOR THE PURPOSE OF PROVIDING AGE-APPROPRIATE CONTENT.]

15 2. OBTAIN PARENTAL OR GUARDIAN CONSENT BEFORE ALLOWING A CHILD TO
16 ~~[EITHER:~~

17 ~~(a)]~~ DOWNLOAD AN APPLICATION DISTRIBUTED OR MADE ACCESSIBLE THROUGH
18 THE COVERED COMPANY'S APPLICATION STORE, IF THE COVERED COMPANY PROVIDES
19 AN APPLICATION STORE.

20 ~~(b)]~~ [3. FACILITATE PARENTAL OR GUARDIAN CONSENT FOR] ACCESS [TO]
21 AN APPLICATION [PRE-LOADED][THAT IS PRELOADED] ONTO A DEVICE FOR THE FIRST
22 TIME[, IF THE COVERED COMPANY PROVIDES AN OPERATING SYSTEM] [IN RESPONSE
23 TO A REQUEST FROM A DEVELOPER].

24 ~~[3. IF THE COVERED COMPANY PROVIDES AN APPLICATION STORE, CONNECT~~
25 ~~THE DEVELOPER OF AN APPLICATION THAT A CHILD DOWNLOADS FROM THE COVERED~~
26 ~~COMPANY'S APPLICATION STORE WITH THE CHILD'S APPROVING PARENT OR GUARDIAN~~
27 ~~TO NOTIFY THE PARENT OR GUARDIAN OF THE FEATURES PRESCRIBED IN SECTION~~
28 ~~44-8043.]~~

29 [4. MAKE CONTROLS AVAILABLE THAT ENABLE ACCOUNT HOLDERS TO DO BOTH
30 OF THE FOLLOWING:

31 (a) RESTRICT WHICH APPLICATIONS CAN BE DOWNLOADED BY A USER BASED
32 ON THE APPLICATIONS' AGE RATINGS WITHIN THE COVERED COMPANY'S APPLICATION
33 STORE.

34 (b) LIMIT THE AMOUNT OF TIME A USER CAN SPEND ON DOWNLOADED
35 APPLICATIONS.

36 5. SEND ONLY THE MINIMUM AMOUNT OF INFORMATION THAT IS NECESSARY TO
37 COMPLY WITH THIS CHAPTER.]

38 ~~[4.]~~ [6.] ON REQUEST, PROVIDE A DEVELOPER, INCLUDING A DEVELOPER
39 OF THE [PRE-LOADED] [PRELOADED] APPLICATION, WITH AN AGE SIGNAL THROUGH A
40 REAL-TIME APPLICATION PROGRAMMING INTERFACE ON AN ONGOING BASIS REGARDING
41 WHETHER [PARENTAL OR GUARDIAN CONSENT HAS BEEN PROVIDED AND WHETHER] AN
42 INDIVIDUAL IS:

43 (a) [LESS THAN][UNDER] THIRTEEN YEARS OF AGE.

44 (b) AT LEAST THIRTEEN YEARS OF AGE BUT [LESS THAN][UNDER] SIXTEEN
45 YEARS OF AGE.

46 (c) AT LEAST SIXTEEN YEARS OF AGE BUT [LESS THAN][UNDER] EIGHTEEN
47 YEARS OF AGE.

48 (d) AT LEAST EIGHTEEN YEARS OF AGE.

1 [B. A COVERED COMPANY MAY NOT SHARE THE AGE SIGNAL OR PARENT OR
2 GUARDIAN CONSENT SIGNAL WITH A THIRD PARTY FOR ANY PURPOSE THAT IS NOT
3 REQUIRED UNDER THIS CHAPTER.

4 C. NOTWITHSTANDING ANY OTHER PROVISION OF THIS CHAPTER, A COVERED
5 COMPANY IS NOT REQUIRED TO SHARE AGE SIGNALS WITH A THIRD PARTY, OTHER
6 THAN WITH A DEVELOPER, THROUGH AN APPLICATION THAT IS DISTRIBUTED ON THE
7 COVERED COMPANY'S APPLICATION STORE.]

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8      44-8043. Developer duties; social media platform duties;
9              minor account default settings

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10 A. A DEVELOPER SHALL:

11 1. ON AN INDIVIDUAL'S ACCOUNT CREATION OR FIRST ACCESS, REQUEST
12 FROM A COVERED COMPANY AN AGE SIGNAL AND~~[, IF THE INDIVIDUAL IS A CHILD, A~~
13 ~~PARENTAL CONSENT SIGNAL FOR THE INDIVIDUAL AND]~~ MAY SUBSEQUENTLY REQUEST
14 ADDITIONAL AGE SIGNALS.

15 2. [IF THE DATA IS AVAILABLE,] USE THE AGE SIGNAL ~~[AND PARENTAL~~
16 ~~CONSENT SIGNAL]~~ FROM A COVERED COMPANY TO:

17 (a) ENFORCE LEGALLY REQUIRED MINIMUM AGE RESTRICTIONS.

18 (b) ENSURE COMPLIANCE WITH ALL LAWS.

19 (c) PROVIDE ANY AGE-APPROPRIATE DEFAULTS, SAFEGUARDS OR EXPERIENCES
20 AS REQUIRED BY THIS CHAPTER.

21 B. IN ADDITION TO THE REQUIREMENTS PRESCRIBED IN SUBSECTION A OF
22 THIS SECTION, IF A DEVELOPER OPERATES A SOCIAL MEDIA PLATFORM, THE
23 DEVELOPER SHALL COMPLY WITH THE ADDITIONAL REQUIREMENTS OF THIS SECTION.

24 C. IF APPLICABLE AND TECHNICALLY FEASIBLE, A SOCIAL MEDIA PLATFORM
25 SHALL PROVIDE READILY AVAILABLE FEATURES FOR A PARENT OR GUARDIAN TO
26 OVERSEE THE [USE OF THE APPLICATION BY THE] PARENT'S OR GUARDIAN'S
27 [CHILD'S USE OF THE APPLICATION][CHILD] AS APPROPRIATE TO THE RISKS THAT
28 ARISE FROM THE CHILD'S USE OF THE DEVELOPER'S APPLICATION. THE FEATURES
29 MUST INCLUDE:

1. THE ABILITY TO VIEW METRICS REFLECTING THE AMOUNT OF TIME THAT THE CHILD IS USING THE APPLICATION AND SET DAILY TIME LIMITS ON THE CHILD'S USE.

33 2. THE ABILITY TO SEE WHICH INDIVIDUALS OR ACCOUNTS ARE
34 AFFIRMATIVELY LINKED TO THE CHILD'S ACCOUNT, INCLUDING THE CHILD'S
35 FRIENDS [] [AND] FOLLOWERS [OR] [AND] ACCOUNTS THAT THE CHILD IS FOLLOWING.

36 3. THE ABILITY TO DETERMINE WHETHER THE CHILD HAS LIMITED THE
37 PUBLIC VISIBILITY OF THE CHILD'S ACCOUNT OR INFORMATION AND CONTENT THAT
38 IS UPLOADED TO THE APPLICATION.

39 4. THE ABILITY TO SEE WHICH INDIVIDUALS THE CHILD HAS BLOCKED.

40 5. THE ABILITY TO SUBMIT A REPORT TO THE APPLICATION CONCERNING A
41 POTENTIAL VIOLATION OF THE DEVELOPER'S TERMS AND POLICIES.

~~42 [6. THE ABILITY TO DISABLE THE DISPLAY OF PERSONALIZED~~
~~43 RECOMMENDATION SYSTEMS FOR A CHILD.]~~

~~D. A SOCIAL MEDIA PLATFORM MUST IMPLEMENT MINOR ACCOUNT DEFAULT SETTINGS FOR A USER THAT THE DEVELOPER KNOWS IS A MINOR. FOR A MINOR USER WHO IS A CHILD, ONLY THE CHILD'S PARENT OR GUARDIAN MAY MODIFY THE MINOR ACCOUNT DEFAULT SETTINGS. FOR A MINOR USER WHO IS AT LEAST SIXTEEN YEARS OF AGE, THE MINOR USER OR THE MINOR'S PARENT MAY MODIFY THE MINOR ACCOUNT DEFAULT SETTINGS. THE MINOR ACCOUNT DEFAULT SETTINGS MUST:~~

1 ~~1.]~~ [6. THE ABILITY TO] DISPLAY A NOTIFICATION TO A USER
2 ~~[WHOM]~~[WHO] THE SOCIAL MEDIA PLATFORM KNOWS IS A MINOR IF THE USER HAS
3 SPENT ONE CUMULATIVE HOUR ON THE APPLICATION DURING ONE CALENDAR DAY. ~~[THE~~
4 ~~NOTIFICATION SHALL INFORM THE MINOR USER OF THE CUMULATIVE DAILY TIME~~
5 ~~SPENT ON THE APPLICATION.]~~

6 ~~2.]~~ [7. THE ABILITY TO] LIMIT THE VISIBILITY OF A MINOR'S ACCOUNT
7 OR PROFILE TO CONNECTED USERS OTHER THAN THE MINOR'S NAME, USERNAME AND
8 PRIMARY DISPLAY PICTURE ~~[, IF APPLICABLE].~~

9 ~~[3.]~~ [8.] ~~[MAINTAIN]~~ REASONABLE POLICIES ~~[ADDRESSING]~~ ~~[THAT~~
10 ~~ADDRESS]~~ EXPOSURE TO SEXUALLY OR VIOLENTLY EXPLICIT MATERIAL ON THE
11 ~~[SOCIAL MEDIA]~~ PLATFORM.

12 ~~[4.]~~ [9. THE ABILITY TO] SILENCE NOTIFICATIONS BETWEEN 10:00 P.M.
13 AND 6:00 A.M. LOCAL TIME.

14 ~~[5.]~~ [10. THE ABILITY TO] PROHIBIT AN UNCONNECTED USER FROM
15 SENDING PRIVATE OR DIRECT MESSAGES TO A MINOR USER, INCLUDING THROUGH
16 VIDEO, VOICE, TEXT OR OTHER MESSAGING ~~[, IF APPLICABLE].~~

17 ~~[6. PROHIBIT A MINOR USER FROM SHARING THE MINOR USER'S REAL-TIME~~
18 ~~PRECISE GEOLOCATION WITH ANY OTHER USER AND ESTABLISH A FEATURE FOR THE~~
19 ~~MINOR'S PARENT OR GUARDIAN TO ALLOW THE MINOR TO SHARE THE MINOR'S PRECISE~~
20 ~~GEOLOCATION WITH CONNECTED USERS AND USERS WHO ARE APPROVED BY THE PARENT.]~~

21 ~~7.]~~ [11. THE ABILITY TO] DISABLE THE AUTOMATIC PLAYING OF VIDEO
22 CONTENT WITHOUT USER ACTION IN A PERSONALIZED RECOMMENDATION SYSTEM.

23 44-8044. Age signal conflicts

24 ~~[A.]~~ [NOTWITHSTANDING SECTION 44-8043, SUBSECTION A.] IF A
25 DEVELOPER ~~[DETERMINES THAT AN INTERNAL AGE SIGNAL CONFLICTS WITH THE AGE~~
26 ~~SIGNAL FROM A COVERED COMPANY, THE DEVELOPER MAY RELY ON THE AGE SIGNAL~~
27 ~~FROM THE COVERED COMPANY UNLESS THE DEVELOPER HAS CLEAR AND CONVINCING~~
28 ~~EVIDENCE THAT AN INTERNAL AGE SIGNAL IS MORE ACCURATE. IF THE DEVELOPER~~
29 ~~HAS CLEAR AND CONVINCING EVIDENCE THAT THE DEVELOPER'S INTERNAL AGE SIGNAL~~
30 ~~IS MORE ACCURATE, INCLUDING IF THE USER PROVIDED PROOF OF AGE TO THE~~
31 ~~DEVELOPER, THE DEVELOPER SHALL USE THE DEVELOPER'S INTERNAL SIGNAL.]~~

32 ~~B. IF APPLICABLE AND TECHNICALLY FEASIBLE, A DEVELOPER SHALL~~
33 ~~TRANSMIT THE CONFLICTING INTERNAL AGE SIGNAL BACK TO A COVERED COMPANY~~
34 ~~THROUGH A MECHANISM THAT IS PROVIDED BY THE COVERED COMPANY IF THE~~
35 ~~DEVELOPER HAS CLEAR AND CONVINCING EVIDENCE THAT AN INTERNAL AGE SIGNAL IS~~
36 ~~MORE ACCURATE.]~~

37 ~~C. ON RECEIPT OF A CONFLICTING INTERNAL AGE SIGNAL FROM A~~
38 ~~DEVELOPER, THE COVERED COMPANY SHALL TAKE STEPS TO REVERIFY THE USER'S AGE~~
39 ~~AND UPDATE THE AGE SIGNAL TO PROVIDE DEVELOPERS WITH THE NEWLY VERIFIED~~
40 ~~AGE.]~~ [HAS CLEAR AND CONVINCING EVIDENCE THAT A USER'S AGE IS DIFFERENT
41 FROM THE AGE THAT IS INDICATED BY THE AGE SIGNAL THAT THE DEVELOPER
42 RECEIVED FROM THE COVERED COMPANY, THE DEVELOPER MAY USE THE DEVELOPER'S
43 INTERNAL DATA.]

1 ~~[44-8045. Material that is harmful to minors; age~~
2 ~~verification, personal identifying information~~
3 ~~protection~~
4 ~~IF AN APPLICATION CONTAINS A SUBSTANTIAL PORTION OF MATERIAL THAT IS~~
5 ~~HARMFUL TO MINORS, A COMMERCIAL ENTITY THAT KNOWINGLY AND INTENTIONALLY~~
6 ~~PUBLISHES OR DISTRIBUTES MATERIAL THAT IS HARMFUL TO MINORS ON THE~~
7 ~~APPLICATION SHALL DO ALL OF THE FOLLOWING:~~
8 ~~1. USE EITHER ANONYMOUS AGE VERIFICATION OR STANDARD AGE~~
9 ~~VERIFICATION TO VERIFY THAT THE PERSON ATTEMPTING TO ACCESS THE MATERIAL~~
10 ~~THAT IS HARMFUL TO MINORS IS AT LEAST EIGHTEEN YEARS OF AGE.~~
11 ~~2. PREVENT ACCESS TO THE MATERIAL THAT IS HARMFUL TO MINORS BY A~~
12 ~~PERSON WHO IS LESS THAN EIGHTEEN YEARS OF AGE.~~
13 ~~3. OFFER ANONYMOUS AGE VERIFICATION AND STANDARD AGE VERIFICATION~~
14 ~~AND ALLOW A PERSON ATTEMPTING TO ACCESS THE MATERIAL THAT IS HARMFUL TO~~
15 ~~MINORS TO SELECT WHICH METHOD WILL BE USED TO VERIFY THE PERSON'S AGE.~~
16 ~~4. ENSURE THAT A THIRD PARTY CONDUCTING ANONYMOUS AGE VERIFICATION~~
17 ~~PURSUANT TO THIS SECTION:~~
18 ~~(a) DOES NOT RETAIN PERSONAL IDENTIFYING INFORMATION USED TO VERIFY~~
19 ~~AGE WHEN THE AGE OF A PERSON SEEKING ACCESS HAS BEEN VERIFIED.~~
20 ~~(b) DOES NOT USE PERSONAL IDENTIFYING INFORMATION THAT IS USED TO~~
21 ~~VERIFY AGE FOR ANY OTHER PURPOSE.~~
22 ~~(c) KEEPS ANONYMOUS ANY PERSONAL IDENTIFYING INFORMATION USED TO~~
23 ~~VERIFY AGE AND DOES NOT SHARE OR OTHERWISE COMMUNICATE THE INFORMATION TO~~
24 ~~ANY PERSON.~~
25 ~~(d) PROTECTS PERSONAL IDENTIFYING INFORMATION USED TO VERIFY AGE~~
26 ~~FROM UNAUTHORIZED OR ILLEGAL ACCESS, DESTRUCTION, USE, MODIFICATION OR~~
27 ~~DISCLOSURE THROUGH REASONABLE SECURITY PROCEDURES AND PRACTICES~~
28 ~~APPROPRIATE TO THE NATURE OF THE PERSONAL INFORMATION.~~
29 ~~44-8046. Civil action; statute of limitations~~
30 ~~A. A MINOR OR THE MINOR'S PARENT WHO HAS BEEN HARMED BY A VIOLATION~~
31 ~~OF THIS CHAPTER MAY BRING A CIVIL ACTION AGAINST THE COVERED COMPANY,~~
32 ~~DEVELOPER OR COMMERCIAL ENTITY.~~
33 ~~B. A COURT OF COMPETENT JURISDICTION MAY AWARD A PREVAILING~~
34 ~~PLAINTIFF ANY OR ALL OF THE FOLLOWING:~~
35 ~~1. ACTUAL DAMAGES OR \$1,000 FOR EACH VIOLATION, WHICHEVER IS~~
36 ~~GREATER.~~
37 ~~2. PUNITIVE DAMAGES IF THE VIOLATION WAS EGREGIOUS.~~
38 ~~3. REASONABLE ATTORNEY FEES.~~
39 ~~4. LITIGATION COSTS.~~
40 ~~C. NOTWITHSTANDING ANY OTHER LAW, A CIVIL ACTION FOR A CLAIM UNDER~~
41 ~~THIS SECTION MUST BE BROUGHT WITHIN ONE YEAR AFTER THE DATE THAT THE~~
42 ~~COMPLAINANT KNEW OR REASONABLY SHOULD HAVE KNOWN OF THE VIOLATION.~~
43 ~~44-8047.] [44-8045.] Attorney general; enforcement; penalties~~
44 ~~A. IN ADDITION TO ANY OTHER REMEDY AVAILABLE UNDER STATE LAW, THE~~
45 ~~ATTORNEY GENERAL MAY BRING AN ACTION AGAINST A COVERED COMPANY, DEVELOPER~~
46 ~~OR COMMERCIAL ENTITY TO:~~
47 ~~1. RECOVER A CIVIL PENALTY OF NOT MORE THAN \$75,000 FOR EACH~~
48 ~~VIOLATION [OF THIS CHAPTER].~~

1 2. RESTRAIN OR ENJOIN THE COVERED COMPANY, DEVELOPER OR COMMERCIAL
2 ENTITY FROM VIOLATING THIS CHAPTER.

3 3. SEEK INJUNCTIVE RELIEF.

4 4. RECOVER REASONABLE ATTORNEY FEES.

5 5. RECOVER LITIGATION COSTS AND REASONABLE COSTS FOR INVESTIGATING
6 THE VIOLATION.

7 B. THE ATTORNEY GENERAL SHALL DEPOSIT, PURSUANT TO SECTIONS 35-146
8 AND 35-147, MONIES COLLECTED PURSUANT TO THIS SECTION IN THE TECHNOLOGY
9 ~~[CONTENT]~~ PROTECTION FOR MINORS GRANT FUND ESTABLISHED BY SECTION
10 ~~[44-1531.03]~~ [41-191.14].

11 ~~[44-8048.]~~ [44-8046.] Immunity

12 A. A DEVELOPER OR COVERED COMPANY IS IMMUNE FROM LIABILITY FOR A
13 VIOLATION OF THIS CHAPTER IF THE DEVELOPER OR COVERED COMPANY DEMONSTRATES
14 THAT THE DEVELOPER OR COVERED COMPANY ~~[BOTH]~~ [MEETS THE FOLLOWING]:

15 1. RELIED IN GOOD FAITH ON ~~[BOTH]~~:

16 ~~(a)~~ [THE] THE APPLICABLE AGE SIGNAL AND~~[,]~~ [THE] AGE SIGNAL INDICATES
17 THAT THE USER IS A CHILD [AND] [BASED ON] THE ~~[PARENTAL OR GUARDIAN~~
18 ~~CONSENT]~~ INFORMATION RECEIVED THROUGH THE COVERED COMPANY'S DATA SHARING
19 METHODS.

20 ~~[(b) THE NOTIFICATION PROVIDED BY THE COVERED COMPANY THAT~~
21 ~~VERIFIABLE PARENTAL OR GUARDIAN CONSENT WAS OBTAINED IF THE AGE SIGNAL~~
22 ~~INDICATED THAT THE USER IS A CHILD.]~~

23 2. IF A DEVELOPER, COMPLIED WITH THE ~~[DEFAULT ACCOUNT SETTINGS]~~
24 REQUIREMENTS DESCRIBED IN SECTION 44-8043 ~~[SUBSECTIONS C AND D]~~.

25 B. IN DETERMINING AN APPLICATION'S AGE RATING AND CONTENT
26 DESCRIPTION, A DEVELOPER IS NOT LIABLE FOR A VIOLATION OF THIS CHAPTER IF
27 THE DEVELOPER USES WIDELY ADOPTED INDUSTRY STANDARDS TO DETERMINE THE
28 APPLICATION'S AGE CATEGORY AND CONTENT DESCRIPTION AND APPLIES THOSE
29 STANDARDS CONSISTENTLY AND IN GOOD FAITH.

30 ~~[C. A DEVELOPER IS NOT LIABLE FOR TRANSMITTING AN INTERNAL AGE~~
31 ~~SIGNAL TO A COVERED COMPANY FOR THE PURPOSES OF RECONCILING CONFLICTING~~
32 ~~AGE SIGNALS PURSUANT TO SECTION 44-8044.]~~

33 ~~D.]~~ [D.] THE IMMUNITY DESCRIBED IN THIS SECTION BOTH:

34 1. APPLIES ONLY TO ACTIONS BROUGHT UNDER THIS CHAPTER.

35 2. DOES NOT LIMIT A ~~[DEVELOPER]~~ [DEVELOPER'S] OR COVERED COMPANY'S
36 LIABILITY UNDER ANY OTHER APPLICABLE LAW.

37 ~~[E.]~~ [D.] THIS SECTION DOES NOT REPLACE ANY OTHER AVAILABLE REMEDY
38 OR RIGHT IN STATE OR FEDERAL LAW.

39 ~~[44-8049.]~~ [44-8047.] Covered companies; compliance;
40 nondiscrimination; use of data

41 A. THIS CHAPTER DOES NOT MODIFY, IMPAIR OR SUPERSEDE THE OPERATION
42 OF ANY ANTITRUST LAWS, UNLESS OTHERWISE SPECIFIED.

43 B. A COVERED COMPANY SHALL COMPLY WITH THIS CHAPTER IN A
44 NONDISCRIMINATORY MANNER~~[, INCLUDING BY COMPLYING WITH]~~ [BY DOING] BOTH OF
45 THE FOLLOWING:

46 1. ~~[A COVERED COMPANY SHALL IMPOSE]~~ [IMPOSING] THE SAME RESTRICTIONS
47 AND OBLIGATIONS ON ~~[ITS]~~ [THE COVERED COMPANY'S] OWN APPLICATIONS AND
48 APPLICATION DISTRIBUTION AS THE COVERED COMPANY IMPOSES ON THIRD-PARTY
49 APPLICATIONS AND APPLICATION DISTRIBUTORS.

1 2. ~~[A COVERED COMPANY MAY NOT USE]~~~~[NOT USING]~~ DATA THAT ~~[IS NOT~~
2 ~~PUBLICLY AVAILABLE AND THAT]~~ IS COLLECTED FROM THIRD PARTIES, OR CONSENT
3 MECHANISMS DEPLOYED FOR THIRD PARTIES, IN THE COURSE OF COMPLIANCE WITH
4 THIS CHAPTER TO COMPETE AGAINST THOSE THIRD PARTIES, ~~[TO]~~ GIVE THE COVERED
5 COMPANY'S SERVICES PREFERENCE RELATIVE TO THOSE OF THIRD PARTIES OR TO
6 OTHERWISE USE THIS ~~[DATA OR CONSENT MECHANISM IN AN ANTICOMPETITIVE~~
7 ~~MANNER]~~ ~~[DATA THAT IS NOT PUBLICLY AVAILABLE IN A MANNER THAT IS~~
8 ~~UNAVAILABLE TO THOSE THIRD PARTIES]~~.

9 Sec. 3. Severability

10 If a provision of this act or its application to any person or
11 circumstance is held invalid, the invalidity does not affect other
12 provisions or applications of the act that can be given effect without the
13 invalid provision or application, and to this end the provisions of this
14 act are severable.

15 Sec. 4. Effective date

16 Section ~~[44-1531.03]~~ ~~[41-191.14]~~, Arizona Revised Statutes, ~~[as~~
17 ~~added by this act.]~~ and title 44, chapter 42, Arizona Revised Statutes, as
18 added by this act, are effective one year after the effective date of this
19 act."

20 Enroll and engross to conform

21 Amend title to conform

SHAWNNA BOLICK

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